



File No.: EXP202313833

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On January 30, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against HUELLAS AVENTURA, S.L. (hereinafter, the defendant), through the Agreement that is transcribed:

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File No.: EXP202313833

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: Ms. A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on August 16, 2023. The complaint is directed against HUELLAS AVENTURA, S.L. with NIF B86304326 (hereinafter, the defendant). In the received document, the following is reported:

The claimant states that the defendant, for the registration in a school trip, provides documentation that links the consent for the contracting of the offered service and for accepting the data protection policy, with the acceptance of the sending of commercial communications. It also points out that clauses for the acceptance of the collection of images of minors are included, without enabling boxes in the document itself to express opposition to such data processing, although the possibility is given in other documentation provided for the contracting of the service offered by the defendant.

It provides a copy of the registration documentation and communications exchanged with the defendant.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on 10/09/2023, the complaint was forwarded to the defendant/ALIAS, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on 10/09/2023 as stated in the acknowledgment of receipt in the file.

On 11/07/2023, the defendant responded stating the following: that they had maintained telephone and email contact with the claimant; that despite the explanations given, the claimant continued to express disagreement regarding the processing of data for the sending of commercial communications, for which they assured her that she would not receive such communications and also indicated that the contracting of the service was not conditioned on the provision of consent for the processing of images of minors.

It provides a Report on Information about the treatments involved, regarding the processing of sending commercial communications and processing of images of minors, the causes of the incident, and the corrective measures applied.

THIRD: On 11/13/2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Article 58 of the GDPR, Powers, states:

"2. Each supervisory authority shall have all of the following corrective powers indicated below:

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"(...)

d) to order the data controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specified manner and within a specified timeframe;

(...)

i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case;

(...)"

III

First Unfulfilled Obligation: Violation of Article 6.1 GDPR

The reported facts materialize in the linking of consent for the contracting of the offered service and acceptance of the data protection policy with the acceptance of the sending of commercial communications, in addition to the inclusion of clauses for the acceptance of the collection of images of minors without the existence of boxes to oppose such processing, which could violate the regulations on the protection of personal data.

Article 6.1 of the GDPR establishes the circumstances that allow for the lawful processing of personal data:

"1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person.
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, particularly when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks."

Furthermore, Recital 40 of the aforementioned GDPR states that "For processing to be lawful, personal data must be processed with the consent of the data subject or on some other legitimate basis laid down in accordance with the law, whether in this Regulation or under other Union or Member State law to which this Regulation relates, including the necessity of complying with a legal obligation to which the controller is subject or the necessity of performing a contract to which the data subject is party or for taking steps at the request of the data subject prior to entering into a contract."

On the other hand, Article 4 of the GDPR, Definitions, in its paragraphs 1, 2, and 11, states that:

"1) 'personal data': any information relating to an identified or identifiable natural person ('data

subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

"2) 'processing': any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction;

"11) 'consent of the data subject': any freely given, specific, informed, and unambiguous indication of the data subject's wishes by which they, by a statement or by a clear affirmative action, signify agreement to the processing of personal data relating to them."

The processing of personal data requires the existence of a legal basis that legitimizes it.

In accordance with Article 6.1 of the GDPR, in addition to consent, there are other possible bases that legitimize the processing of data without the need for the authorization of its owner, particularly when it is necessary for the performance of a contract to which the affected party is a party or for the application, at their request, of pre-contractual measures, or when it is necessary for the satisfaction of legitimate interests pursued by the controller or by a third party, provided that such interests do not override the interests or fundamental rights and freedoms of the affected party requiring the protection of such data. Processing is also considered lawful when necessary for compliance with a legal obligation to which the controller is subject, to protect the vital interests of the affected party or of another natural person, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller.

In this case, a complaint is presented regarding the linking of consent for the contracting of the offered service and acceptance of the data protection policy with the acceptance of the sending of commercial communications, in addition to the

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inclusion of clauses for the acceptance of the collection of images of minors without there being boxes to oppose such processing.

As previously stated, the processing of personal data requires the existence of a legal basis that legitimizes it. When the basis for legitimization is consent, if consent is desired for different purposes, it must be obtained for each of them and must be provided validly and expressly, with it not being valid to mandatorily check the acceptance box without giving the user the option to provide free and individualized consent.

In this regard, concerning the processing of sending commercial communications, the respondent has acknowledged that "the responsible party introduced by default, in the data processing clause, the information about sending communications and about the possibility of exercising their rights easily at any time without obtaining express consent."

Regarding the processing of images of minors, the respondent states that "depending on the selection of the interested parties, it is automatically transferred in a personalized manner to the combined travel contract. That is, if they check the acceptance box for the processing of images, it is automatically specified in the combined travel contract that they have expressly authorized it. If they do not check it or omit it, it is specified in the contract that they do not authorize such processing."

Both in the privacy policy and in the travel contract, it is indicated, "The client YES/NO expressly authorizes that photographs be taken during the trip and published," however, there is no possibility to check "Yes" or "No."

Therefore, it is considered that the consent thus obtained does not constitute a manifestation of free, specific, informed, and unequivocal will by which the interested party accepts, and thus there is no

legal basis that legitimizes the processing carried out, violating the principle of legality enshrined in Article 6.1 of the GDPR, as typified in Article 83.5 a) of the GDPR.

IV

Typification of the infringement of Article 6.1 GDPR

The infringement attributed to the respondent is typified in Article 83.5 a) of the GDPR, which considers that the infringement of "the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9" is sanctionable, according to paragraph 5 of the aforementioned Article 83 of the cited Regulation, "with administrative fines of up to €20,000,000 or, in the case of a company, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount."

The LOPDGDD in its Article 71, Infringements, states that: "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 constitute infringements, as well as those that are contrary to this organic law."

And in its Article 72, it considers for the purposes of prescription that they are: "Infringements considered very serious:

1. According to what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and will prescribe in three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.

(...)"

V

Sanction for non-compliance with Article 6.1 GDPR

In order to establish the administrative fine that should be imposed, the provisions contained in Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this Article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected parties and the level of damage and harm they have suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the affected parties;

d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have applied under Articles 25 and 32;

e) any previous infringement committed by the controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

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h) the manner in which the supervisory authority became aware of the infringement, particularly whether the controller or the processor reported the infringement and, if so, to what extent;

i) when the measures indicated in Article 58(2) have been previously ordered against the controller or

processor in relation to the same matter, the compliance with such measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as financial benefits obtained or losses avoided, directly or indirectly, through the infringement.

In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, "Sanctions and corrective measures," establishes that:

"2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The continued nature of the infringement.

b) The connection of the infringer's activity with the processing of personal data.

c) The benefits obtained as a result of the commission of the infringement.

d) The possibility that the conduct of the affected party may have induced the commission of the infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

f) The impact on the rights of minors.

g) Having, when not mandatory, a data protection officer.

h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party."

- In accordance with the transcribed provisions, and without prejudice to the outcome of the instruction of the procedure, for the purpose of determining the amount of the fine to be imposed in this case for the infringement of Article 6.1 of the GDPR, classified in Article 83.5.a) of the GDPR for which the respondent is held responsible, an initial assessment indicates that the following circumstances apply: The aggravating circumstances are:

The intentionality or negligence in the infringement; there is a serious lack of diligence in the actions of the respondent as it was not authorized for the processing carried out. Also connected with the degree of diligence that the data controller is obliged to demonstrate in complying with the obligations imposed by data protection regulations, the SAN of 17/10/2007 can be cited. Although it was issued before the GDPR came into force, its ruling is perfectly extrapolatable to the case we are analyzing. The judgment, after referring to the fact that entities whose activities involve continuous processing of data from clients and third parties must observe an adequate level of diligence, specified that "(...). the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the infringer does not behave with the required diligence. And in assessing the degree of diligence, the professionalism or lack thereof of the subject must be particularly weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard" (Article 83.2, b) of the GDPR).

The activity of the entity linked to the processing of data from both clients and third parties. Given the nature of its activity, the processing of personal data from clients as well as third parties is essential for the respondent, so the significance of its conduct subject to this procedure is undeniable (Article 76.2.b) of the LOPDGDD in relation to Article 83.2.k).

In light of the above, it is deemed appropriate to establish a fine of 5,000 euros for the violation of Article 6.1 of the GDPR.

VI

Second obligation breached: infringement of Article 7 of the GDPR

Article 7 of the GDPR establishes:

"1. When the processing is based on the consent of the data subject, the controller must be able to demonstrate that the data subject has consented to the processing of their personal data.

2. If the consent of the data subject is given in the context of a written declaration that also relates to other matters, the request for consent must be presented in such a way that it is clearly distinguishable from other matters, intelligible and easily accessible, and using clear and plain language. No part of the declaration that constitutes a breach of this Regulation shall be binding.

3. The data subject shall have the right to withdraw their consent at any time. The withdrawal of consent shall not affect the lawfulness of processing based on consent before its withdrawal. Before giving consent, the data subject shall be informed thereof. It shall be as easy to withdraw consent as to give it.

4. In assessing whether consent has been freely given, account shall be taken, as far as possible, of whether, among other things, the performance of a contract, including the provision of a service, is conditional on consent to the processing of personal data that is not necessary for the performance of that contract” (the emphasis is from the AEPD).

Recital 32 of the GDPR indicates that:

“32. Consent must be given by means of a clear affirmative act that reflects the data subject's free, specific, informed, and unambiguous indication of their wishes.”

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interested party to accept the processing of personal data concerning them... Therefore, silence, pre-checked boxes, or inaction should not constitute consent. Consent must be given for all processing activities carried out for the same or similar purposes. When processing has multiple purposes, consent must be given for all of them...”

In the present case, acceptance of the data protection policy implies acceptance of the sending of commercial communications and the processing of images of minors; it was previously stated that the respondent has informed that both in the privacy policy and in the travel contract it is indicated “The client YES/NO expressly authorizes that photographs be taken during the trip and published,” however, there is no possibility to check “Yes” or “No.”

The responding party provides a travel contract that presents a data protection policy different from that contained in the claimant's contract. In the claimant's travel contracting document, it is established that consent for contracting implies acceptance of the publication of images: “by accepting this document, the client authorizes HUELLAS AVENTURA, S.L. to make pedagogical/commercial use of the images taken by our company, which may be published in the following media (...). The act of registering for the combined trip represents acceptance of the conditions and the signing of this contract.”

Recital 70 states that:

“(70) If personal data are processed for direct marketing purposes, the interested party must have the right to object to such processing, including the profiling to the extent that it is related to such direct marketing, whether with respect to initial or subsequent processing, and this at any time and at no cost. This right must be communicated explicitly to the interested party and presented clearly and separately from any other information.”

Also, Article 92 of the LOPDGDD, Protection of minors' data on the Internet, establishes that:

“Educational centers and any natural or legal persons who carry out activities involving minors shall ensure the protection of the best interests of the minor and their fundamental rights, especially the right to the protection of personal data, in the publication or dissemination of their personal data through information society services.

When such publication or dissemination is to take place through social network services or equivalent services, they must have the consent of the minor or their legal representatives, in accordance with the provisions of Article 7 of this law.”

Therefore, it is considered that the conduct of the respondent in linking the provision and execution of the contract to the processing of personal data that exceeds it could constitute a violation of Article 7 of the aforementioned GDPR, as typified in Article 83.5.a) of the GDPR.

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VII

Typification of the infringement of Article 7 of the GDPR

The infringement attributed to the respondent is typified in Article 83.5 a) of the GDPR, which considers that the infringement of “the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9” is subject to penalties, in accordance with paragraph 5 of the aforementioned Article 83 of the cited Regulation, “with administrative fines of up to €20,000,000 or, in the case of an enterprise, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount.”

The LOPDGDD in its Article 72 considers for the purposes of prescription that they are:

“Very serious infringements:

1. According to what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and will prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

c) The failure to comply with the requirements set forth in Article 7 of Regulation (EU) 2016/679 for the validity of consent.

(...)”

VIII

In order to establish the administrative fine that should be imposed, the provisions contained in Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this Article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are in each individual case effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected parties and the level of damage and harm they have suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the affected parties;

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d) the degree of responsibility of the data controller or the processor, taking into account the technical or organizational measures they have applied pursuant to Articles 25 and 32;

e) any previous infringement committed by the data controller or the processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58(2) have been previously ordered against the data controller or processor in relation to the same matter, compliance with such measures;

j) adherence to codes of conduct pursuant to Article 40 or to certification mechanisms approved under Article 42; and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.

In relation to point k) of Article 83(2) of the GDPR, the LOPDGDD, in its Article 76, “Sanctions and corrective measures,” establishes that:

“2. According to the provisions of Article 83(2)(k) of Regulation (EU) 2016/679, the following may also

be taken into account:

- a) The ongoing nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the data controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party."

- According to the transcribed provisions, and without prejudice to what results from the instruction of the procedure, for the purpose of determining the amount of the fine to be imposed in this case for the infringement of Article 7 of the GDPR, classified under Article 83(5)(a) of the GDPR for which the respondent is held responsible, an initial assessment considers the following aggravating circumstance:

The intentionality or negligence in the infringement; there is a serious lack of diligence in the actions of the respondent as they were not authorized for the processing carried out. This is also connected with the degree of diligence that the

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The data controller is obliged to comply with the obligations imposed by data protection regulations, as cited in the SAN of 17/10/2007. Although it was issued before the enactment of the GDPR, its ruling is perfectly extrapolable to the case we are analyzing. The judgment, after referring to the fact that entities whose activities involve continuous processing of data from clients and third parties must observe an adequate level of diligence, specified that "(...). the Supreme Court has understood that there is negligence whenever a legal duty of care is neglected, that is, when the offender does not behave with the required diligence. In assessing the degree of diligence, the professionalism or lack thereof of the subject must be particularly weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard" (Article 83.2, b) of the GDPR).

The activity of the entity is linked to the processing of data from both clients and third parties. Given the nature of its activity, the processing of personal data from clients as well as third parties is essential, so the significance of its conduct, which is the subject of this procedure, is undeniable (Article 76.2.b) of the LOPDGDD in relation to Article 83.2.k).

In accordance with the above, it is deemed appropriate to establish a sanction of 5,000 euros for the violation of Article 7 of the GDPR.

IX

If the infringement is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

Therefore, it would be considered appropriate to order the respondent to adjust the processing that is the subject of this procedure to the applicable regulations within a period of six months. The text of this

agreement establishes what the facts have been that have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the one that fully knows its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

Such measures could be specified, depending on what results from the instruction of the sanctioning procedure, in ensuring compliance with the requirements of the data protection regulations regarding the processing being carried out by appropriately adjusting the provision of consents to each of the specific purposes intended, conveniently separating the consent for sending commercial communications from the other specific consents related to the contractual relationship, implementing the pertinent measures.

It is warned that failure to comply with the order imposed by this agency may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, and such conduct may lead to the opening of a further administrative sanctioning procedure.

Therefore, in light of the above,

By the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against HUELLAS AVENTURA, S.L., with NIF B86304326,

- For the alleged infringement of Article 6.1 of the GDPR, classified in Article 83.5.a) of the GDPR.

- For the alleged infringement of Article 7 of the GDPR, classified in Article 83.5.a) of the GDPR.

SECOND: TO APPOINT R.R.R. as Instructor and S.S.S. as Secretary, indicating that either of them may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, as well as the documents obtained and generated by the General Subdirectorato of Data Inspection in the actions prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), and Article 127 letter b) of the RLOPD, the sanction that may correspond for the infringements of Articles 6.1 and 7 of the GDPR would be 10,000 euros (ten thousand euros), without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to HUELLAS AVENTURA, S.L., with NIF B86304326, granting a hearing period of ten working days for it to submit allegations and present any evidence it deems appropriate. In its written allegations, it must provide its NIF and the procedure number that appears in the heading of this document.

If no allegations are made to this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as provided in the

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Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

You are also informed that, in accordance with the provisions of Article 85.1 LPACAP, you may acknowledge your responsibility within the period granted for submitting allegations to this initiation agreement, which will entail a reduction of 20% of the sanction that may be imposed in this procedure, equivalent in this case to 2,000 euros. With the application of this reduction, the sanction would be set at 8,000 euros, resolving the procedure with the imposition of this sanction.

Similarly, you may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, in accordance with the provisions of Article 85.2 LPACAP, which will imply a reduction of

20% of its amount, equivalent in this case to 2,000 euros. With the application of this reduction, the sanction would be set at 8,000 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one that corresponds to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to be applied, the amount of the sanction would be set at 6,000 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

In the event that you choose to proceed with the voluntary payment of any of the amounts indicated above (8,000 euros or 6,000 euros), in accordance with the provisions of Article 85.2 referred to, we inform you that you must make it effective by depositing it into the restricted account No. ES00 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

You must also send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement or, if applicable, from the draft initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

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In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be made exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address before this Agency to receive the notice of availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid. Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

Mar España Martí
Director of the Spanish Agency for Data Protection

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SECOND: On February 9, 2024, the respondent has proceeded to pay the sanction in the amount of 6,000 euros by utilizing both reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations to the opening of the procedure, entails the renunciation of any action or administrative appeal against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

FOURTH: In the previously transcribed Initiation Agreement, it was indicated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the cited Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified period...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included

in the Initiation Agreement is appropriate.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each

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control authority and according to the provisions of Articles 47, 48.1, 64.2, and 68.1 of the Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the Procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in Sanctioning Procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the impropriety of the latter has been justified, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent body to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for the Protection of Data RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202313833, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER HUELLAS AVENTURA, S.L. to notify the Agency of the adoption of the measures described in the legal grounds of the Agreement of initiation transcribed in this resolution, within 6 months from the date this resolution becomes firm and enforceable.

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THIRD: TO NOTIFY this resolution to HUELLAS AVENTURA, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for the Protection of Data

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